

9:00 9	26CV492358	Raymond Avina et.al. vs. Sharon Armstrong	Plaintiff moves this court for trial preference under CCP 36(a). Defendant argues that Plaintiff fails to meet both elements of the code. Plaintiff is over 70 years old. Defendant concedes the first element that party has a substantial interest in the action as a whole. Defendant argues that Plaintiff has not presented evidence that the "health of the party is such that a preference is necessary to prevent prejudicing the party's interest..." (CCP 36(a)). The court agrees that such evidence has not been forthcoming. Plaintiff's motion is DENIED. CASE TO BE HEARD AT 10:30. IF CASE IS CONTESTED, CASE WILL BE CONTINUED FOR ORAL ARGUMENT.
9:01 1	23CV412865	Onemain Financial Group vs. Ajanay Walker	Defendant moves for exemption from wage garnishment. Plaintiff objects. Court needs oral argument to determine amount of wage garnishment. CASE TO BE HEARD AT 10:30. THIS CASES WILL BE CONTINUED.
	21CV384369	Comerica Bank vs. Stanley McIntyre	Defendant moves for exemption from wage garnishment. No objection was filed. Defendant's motion is GRANTED. CASE TO BE HEARD AT 10:30. IF CASE IS CONTESTED, CASE WILL BE CONTINUED.

Calendar Line 3

Case Name: *Xiaowei Guan et al. v. Lu Zhipeng et al.*

Case No.: 25CV467677

Plaintiff Xiaowei Guan ("Guan") moves for leave to amend to file a second amended complaint (the "SAC"). According to Guan, the proposed SAC "contains a number of minor, non-substantive word changes and replacements"; factual allegations supporting causes of action against Defendant Jia Sun ("Sun"); changes made regarding Defendant Hao Chen ("Chen") and Chen's activities related to Defendants Skyline Development, Inc. ("Skyline") and Lusso, Inc.; separates the first amended complaint's (the "FAC") first cause of action into two causes of action; and removes Defendant Bank of America Corporation and the related twelfth cause of action. (Memorandum of Points and Authorities in Support of Motion for Leave to Amend ("MPA"), pp. 3:26-4:16.) Chen opposes Guan's motion.

The court GRANTS Chen's request for judicial notice of the original complaint filed in this matter, Chen's demurrer to this complaint, the FAC, and Chen's demurrer to the FAC. (Request for Judicial Notice in Support of Motion for Leave to Amend, p. 2:4-9; Evid. Code, § 452, subd. (d) ["Judicial notice may be taken of . . . [r]ecords of (1) any court of this state . . ."].)

Code of Civil Procedure section 473 "permits the trial court in its discretion to allow amendments to pleadings in the furtherance of justice. Ordinarily, courts should 'exercise